

(48)

Tentative Ruling

Re: **Long v. Esquivel**
Superior Court Case No. 24CECG04998

Hearing Date: July 30, 2026 (Dept. 403)

Motion: By Defendant for Terminating Sanctions

Tentative Ruling:

To grant and impose terminating sanctions against plaintiff Joshua C. Long, for plaintiff's willful refusal to comply with this court's order compelling him to respond to discovery requests and pay sanctions. (Code Civ. Proc., §§ 2023.010 (d) & (g).) The complaint filed by plaintiff Joshua C. Long on November 14, 2024, is dismissed, without prejudice. (Code Civ. Proc., §2023.030, subd. (d)(3).)

Explanation:

Section 2023.010 defines "misuses of the discovery process" as including, "failing to respond or submit to an authorized method of discovery" and "disobeying a court order to provide discovery." (Code Civ. Proc., § 2030.010, subds. (d) & (g).) Section 2023.030 states, in relevant part:

To the extent authorized by the chapter governing any particular discovery method or any other provision of this title, the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process:

* * *

(d) The court may impose a terminating sanction by one of the following orders:

* * *

(3) An order dismissing the action, or any part of the action, of that party.

(Code Civ. Proc., § 2023.030, subd. (d)(3).)

Accordingly, terminating sanctions must be authorized by a specific discovery statute; they are not available merely because they are an option listed in Code of Civil Procedure section 2023.030.

The failure to respond to interrogatories is controlled by Code of Civil Procedure section 2030.290, subdivision (c). That section provides that if a party unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that

the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust, the court “shall” impose monetary sanctions. It is only when a party disobeys an order compelling responses that a terminating sanction is called for.

If a party then fails to obey an order compelling answers, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010).

(Code Civ. Proc., § 2030.290, subd. (c).)

A party's failure to obey an order to respond to requests for production of documents is also subject to “the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010).” (Code Civ. Proc., § 2031.300, subd. (c).)

Courts generally follow a policy of imposing the least drastic sanction required to obtain discovery or enforce discovery orders, because the imposition of terminating sanctions is a drastic consequence, one that should not lightly be imposed, or requested. (*Lopez v. Watchtower Bible & Tract Society of New York, Inc.* (2016) 246 Cal.App.4th 566, 604.) Appellate courts have generally held that before imposing a terminating sanction, trial courts should usually grant lesser sanctions first. (Weil, Brown, Edmon & Karnow, *California Practice Guide: Civil Procedure Before Trial* (The Rutter Group 2026) § 8:2235.) However this is not an “inflexible” policy, and it is not an abuse of discretion to issue terminating sanctions on the first request, where circumstances justify it (e.g. where the violation is egregious or the party is using failure to respond as a delaying tactic). (*New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1433.)

Where a violation of the discovery rules is willful, preceded by a history of abuse, and the evidence shows that a less severe sanction would not produce compliance, the trial court is justified in imposing the ultimate sanction. (*Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279–280 [Party failed to respond despite court orders and monetary sanctions].) Terminating sanctions are appropriate where the trial court concludes that lesser sanctions would not bring about the compliance of the offending party. (*R.S. Creative, Inc. v. Creative Cotton, Ltd.* (1999) 75 Cal.App.4th 486, 496 [Terminating sanctions affirmed where there were violations of stipulations and court orders, forged document offered as true, and deliberate destruction of evidence to expose that fact].)

Sanctions are supposed to further a legitimate purpose under the Discovery Act, i.e., to compel disclosure so that the party seeking the discovery can prepare their case, and secondarily to compensate the requesting party for the expenses incurred in enforcing discovery. Sanctions should not constitute a “windfall” to the requesting party; the choice of sanctions should not give that party more than would have been obtained had the discovery been answered. (Weil, Brown, Edmon & Karnow, *supra*, § 8:2212.) “The sanctions the court may impose are such as are suitable and necessary to enable the party seeking discovery to obtain the objects of the discovery he seeks but the court may

not impose sanctions which are designed not to accomplish the objects of the discovery but to impose punishment. [Citations.]" (*Caryl Richards, Inc. v. Superior Court In and For Los Angeles County* (1961) 188 Cal.App.2d 300, 304.) Where there is no showing that the requested discovery has any legitimate purpose, an order of terminating sanctions for failing to respond would be punitive rather than remedial. (*Morgan v. Ransom* (1979) 95 Cal.App.3d 664, 669-670.)

Here, plaintiff Joshua C. Long ("Plaintiff") was ordered on October 21, 2025, to provide further responses to form interrogatories, special interrogatories, and requests for production, and to pay monetary sanctions to defendant Joe Esquivel's counsel. Plaintiff failed to serve responses as ordered by the court. (Kearney Decl., ¶ 15.)

Defendant Joe Esquivel ("Defendant") argues the terminating sanction is warranted based on Plaintiff's willful refusal to provide discovery responses. The "willfulness" of Plaintiff's actions is demonstrated in his pattern of failing to participate in the prosecution of his case. Defendant points to Plaintiff's failure to respond to discovery, failure to respond to Defendant's meet and confer letters ahead of the motions to compel discovery, Plaintiff's failure to oppose the motions to compel his discovery responses, and Plaintiff's failure to comply with the court's April 23, 2025 order compelling him to provide discovery responses. (Kearney Decl., ¶¶ 11, 15-17.) Further proving Plaintiff's willful disregard of his obligations to participate in his own case, Plaintiff has failed to oppose the motion seeking to terminate this action.

The evidence presented by Defendant of Plaintiff's repeated failure to participate in discovery as ordered demonstrates willfulness in Plaintiff's failure to comply with the court's orders. It does not appear additional monetary sanctions or other lesser sanctions will prompt Plaintiff's compliance with court orders.

Therefore, the court intends to grant Defendant's motion for terminating sanctions and dismiss the complaint filed by Plaintiff on November 14, 2024, without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on 7/29/26.
(Judge's initials) (Date)